IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re Patent Application of:	Reinaldo Javier Aguiar Marcano
Application Number:	19/560,062
Confirmation Number:	9071
Filing Date:	March 8, 2026
Group Art Unit:	Pre-Exam / TC 2100
Examiner:	Andrea Bennett
Title of Invention:	PORTABLE DATA CARTRIDGE WITH OPTICAL INTERFACE

CONDITIONAL REQUEST FOR SUSPENSION OF ACTION UNDER 37 CFR § 1.103(a)

Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

Applicant Reinaldo Javier Aguiar Marcano, prosecuting the above-referenced nonprovisional patent application *pro se* under Small Entity status, hereby formally requests a **six-month suspension of action** under 37 CFR § 1.103(a) to take effect upon clearance of pre-examination formalities.

I. PROCEDURAL POSTURE

Pursuant to the Office of Petitions Decision (OPPT) mailed September 29, 2026 (signed by Attorney Advisor Cliff Congo), which noted that an applicant may seek relief under 37 CFR § 1.103 after pre-examination processing, Applicant has concurrently filed a complete response curing all outstanding requirements from the July 10, 2026 Notice to File Missing Parts and September 9, 2026 Notice of Incomplete Reply. Because the substitute specification, replacement claims and abstract on separate sheets, and statutory fees have been submitted, there will be no outstanding Office action once OPAP processes the reply, making a suspension under § 1.103(a) procedurally proper upon transfer to Technology Center 2100.

II. GOOD AND SUFFICIENT CAUSE FOR SUSPENSION

Applicant requests a six-month suspension of action on the merits for good and sufficient cause:

1. **Active Federal Civil Rights Litigation and Physical Confinement (SDTX Civil Action No. 4:26-CV-08794):** Applicant is currently prosecuting an active federal civil rights and emergency injunctive action in the United States District Court for the Southern District

of Texas (Houston Division), docketed as **Civil Action No. 4:26-CV-08794**, *Reinaldo J. Aguiar Marcano v. G. Troy Pickett, et al.* (assigned to **U.S. District Judge Kenneth M. Hoyt**). This federal action directly challenges and seeks to enjoin an unconstitutional state-court civil arrest warrant (Capias) issued in Fort Bend County, Texas (Cause No. 25-DCV-328122) without personal service or jurisdiction. Under the continuous threat of this void warrant, Applicant has been forced into an involuntary, *de facto* physical confinement at his corporate office for over 145 consecutive days, completely stripping him of freedom of movement, preventing physical access to postal mail, restricting access to registered patent counsel, and severely incapacitating his ability to safely monitor and prosecute this patent application.

2. **Pending Emergency Federal Injunctive Relief (TRO):** On October 7, 2026, the federal court officially entered Plaintiff's Complaint (Doc. 1) and Emergency *Ex Parte* Application for a Temporary Restraining Order and Preliminary Injunction under Fed. R. Civ. P. 65 (Doc. 2). On October 8, 2026, Applicant submitted an Emergency Advisory and Request for Expedited Ruling to accelerate the federal injunction restraining county officials from executing the warrant.
3. **Severe Financial Incapacitation:** The ongoing state-court asset freeze and physical confinement have subjected Applicant to a devastating financial burden. As a *pro se* Small Entity inventor prosecuting a portfolio of over 100 related defensive technologies, Applicant faces aggregate progressive extension-of-time liabilities exceeding $400,000. While Applicant has managed to pay the extension fee to rescue this specific application today, sustaining continuous prosecution across the portfolio while federal courts resolve his physical liberty is factually impossible.

A six-month suspension of action will preserve the status quo, protect this critical technology from procedural forfeiture, and provide the federal judiciary the necessary time to adjudicate the emergency TRO and restore Applicant's physical capacity to prosecute.

III. FEE AUTHORIZATION

The applicable Small Entity processing fee of **$60.00** under 37 CFR § 1.17(i) (Fee Code 2830) is submitted concurrently herewith via electronic payment in Patent Center. If any additional fee is required upon action by the Technology Center, the Office is respectfully requested to notify Applicant.

Respectfully submitted,

/Reinaldo Javier Aguiar Marcano/
Reinaldo Javier Aguiar Marcano
Pro Se Applicant
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Date: October 9, 2026